

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
IRIS SOTO,

SUMMONS

Plaintiff,

-against-

CITY OF NEW YORK, DET. ABDIEL ANDERSON, and
OFFICERS JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

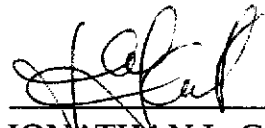
Plaintiff designates
BRONX County as the
place of trial
The basis of venue is:
CPLR 504 (3)

Defendants.
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.
December 16, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

Det. Abdiel Anderson Shield 001429 of the NARCBX
1 Police Plaza, New York, NY 10038

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COUNTY CLERK
BRONX COUNTY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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IRIS SOTO,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, Det. ABDIEL ANDERSON, and
OFFICER[S] JOHN AND JAMES DOE, names being
fictitious and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by her attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF THE
PLAINTIFF IRIS SOTO PURSUANT TO 42 U.S.C. §1983

1. At the time of the commencement of this action, Plaintiff IRIS SOTO was and still
is a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

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BRONX COUNTY

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3. That at all times herein mentioned, Defendants CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about October 15, 2012, Det. ABDIEL ANDERSON was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about October 15, 2012, at approximately 11 A.M., Det. ABDIEL ANDERSON was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about October 15, 2012, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about October 15, 2012, at approximately 11 A.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

9. That on or about October 15, 2012 at approximately 11 A.M., at apartment GN of 575 East 140th Street, Bronx, New York, the Plaintiff IRIS SOTO was improperly arrested

and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine IRIS SOTO .

10. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

11. That the defendants, their agents, servants and/or employees arrested the plaintiff IRIS SOTO without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.

12. That the aforementioned arrest of plaintiff by Det. ABDIEL ANDERSON was made based upon false information provided to Det. ABDIEL ANDERSON by an undercover police officer.

13. That Det. ABDIEL ANDERSON knew or should have known that the information provided to Det. ABDIEL ANDERSON by the informant undercover police officer was false.

14. That the aforementioned undercover police officer, whose identity is know to the CITY OF NEW YORK, was working and acting within the scope of his/her employment as a Police Officer, and under the color of law.

15. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff IRIS SOTO, who was aware of her unlawful detention and confinement and took her property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

16. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

17. That following her arrest on October 15, 2012, plaintiff was improperly and invasively searched by the defendants, their agents, servants and/or employees at the 40th Precinct, 257 Alexander Avenue, Bronx, New York without a reasonable, articulable suspicion that she was secreting evidence underneath her clothing or within a bodily cavity.

18. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of arresting persons upon pretext and/or the fabrication of evidence, and testify falsely so often, omitting such acts or fabricating evidence under false pretext, that such conduct is considered routine by the offending officers for nefarious, unlawful reasons such as the fulfillment of arrest quotas and subjugate minority population without reprimand to the offending officers.

19. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeny, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas. Said arrest quotas, euphemistically known under such terms as 'productivity goals', lead to a practice and procedure of, for instance, arresting persons when individualized reasonable or probable cause does not exist.

20. That said illegal and unlawful arrests without reasonable or probable cause are a matter of policy and record and openly acknowledged or known by the defendants and the individually named defendants supervisors, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and evidenced by the multitude of actions

brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs.

21. Moreover, patterns of such unlawful arrests of multiple persons when individualized reasonable or probable cause is lacking is demonstrated and has occurred to such individuals such as SAMUEL ALLEN on February 3, 2010 inside 1371 College Avenue, Bronx, New York ; and LISA CAMACHO and JESSICA HERNANDEZ on or about March 26, 2010 at approximately 8 A.M., at 1050 Lowell Street, Apartment 3A, Bronx, New York; and VIRGINIA NEVERS and ANIYA NEVERS on or about March 27, 2010 at approximately 7 A.M., at 3321 Seymour Avenue, Bronx, New York; and CHRISTINA FELIZ and DENISE THOMAS on April 8, 2010; and SELVIN SPENCER, HERBERT SPENCER and TARICK SIMMS on or about September 2, 2008 at approximately 8:45 P.M., at or near 2584 Briggs Avenue , Bronx, New York; TREENA WILSON and KENNETH CLARKE on or about April 8, 2010 at approximately 11:30 A.M., at or near 840 Freeman Street, Bronx, New York; LUIS GONZALEZ and CHRISTINA MARIE GONZALEZ ANDINO on August 20, 2010 at 1859 Grand Concourse; MARIA ORTEGA on October 29, 2010 at 614 East 168th Street, Apt. 2B, Bronx, New York; and a significant number of other similarly situated individuals whom defendants are necessarily aware of by virtue of the claims, causes of action and

complaints brought against defendants in both state and federal courts and through CITY OR NEW YORK agencies and departments.

22. Furthermore patterns of wrongful strip searches conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity has occurred to such individuals such as, for instance, WILLIAM ECHEVARRIA on January 19, 2010 at the 40th Precinct and ANGEL RIVERA on or about April 17, 2009 at the 40th Precinct, and EDWARD LOPEZ on or about September 23, 2011 at the 40th Precinct, and is well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

23. That no negligence or actions on the part of the plaintiff IRIS SOTO contributed to the occurrences alleged herein in any manner whatsoever.

24. The herein above described actions and omissions, engaged in under the color of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the

plaintiff IRIS SOTO of rights secured by the Constitution and laws of the United States, including, but not limited to the First Amendment right of freedom of expression, the Fourth Amendment right to be free from unlawful seizures of her person, the Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, the Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

25. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

26. That as a result of the foregoing, the plaintiff IRIS SOTO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF IRIS SOTO FOR FALSE ARREST PURSUANT TO STATE LAW

27. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 26 as though more fully set forth herein.

28. That on or about January 18, 2013, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant IRIS SOTO, to be presented to the defendant CITY OF NEW YORK, by delivering a copy

thereof to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, a GML 50-h hearing was held for claimant on May 23, 2013 and this action was commenced on the claim within one year and ninety days after the happening of the events upon which the claim is based.

29. That this action is being commenced within one year and ninety days after accrual of the causes of action, or within the time allowed by law.

30. That on or about October 15, 2012 at approximately 11 A.M., at apartment GN of 575 East 140th Street, Bronx, New York, the Plaintiff IRIS SOTO was improperly arrested and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to arrest or confine IRIS SOTO .

31. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

32. That the defendants, their agents, servants and/or employees arrested the plaintiff IRIS SOTO without any basis in law or fact, by making false accusations against her, when they knew, or in the exercise of reasonable care, should have known they were false.

33. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff IRIS SOTO, who was aware of her unlawful detention and confinement and took her property without any basis in law or fact, thereby causing fright, shock, emotional distress and physical consequences.

34. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the plaintiff of Due Process under Law.

35. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

36. That as a result of the foregoing, the plaintiff IRIS SOTO were damaged in sums which exceed the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF IRIS SOTO

37. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 36 as though more fully set forth herein.

38. That following her arrest on October 15, 2012, plaintiff was improperly and invasively searched by the defendants, their agents, servants and/or employees at the 40th Precinct, 257 Alexander Avenue, Bronx, New York without a reasonable, articulable suspicion that she was secreting evidence underneath her clothing or within a bodily cavity and was thereby caused fright, shock, emotional distress and physical consequences.

39. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

40. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

41. That as a result of the foregoing, the plaintiff IRIS SOTO was damaged in a sum which exceeds the jurisdiction of all lower Courts..

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF THE

PLAINTIFF IRIS SOTO

42. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 41 as though more fully set forth herein.

43. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

44. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the proper and lawful arrest of individuals and the proper conducting of searches of detainees.

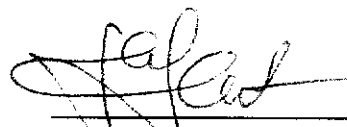
45. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the Defendant's negligence, plaintiff IRIS SOTO was denied freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiff was made, and still are and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to

plaintiff's usual vocation and avocations; all to the plaintiff's damage in sums which exceed the jurisdiction of all lower Courts.

46. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiff demands judgment against the Defendants on the First Second, Third and Fourth Causes of Action, and inclusive of punitive damages, and attorneys fees as permitted by statute, in sums which exceed the jurisdiction of all lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
December 16, 2013


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

IRIS SOTO

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

Det. Abdiel Anderson Shield 001429 of the NARCB BX
1 Police Plaza, New York, NY 10038

PLAINTIFF'S VERIFICATION

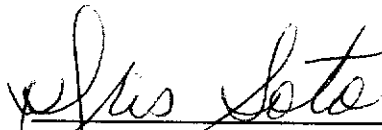
IRIS SOTO affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.



IRIS SOTO